

EMPLOYEE RETIREMENT INCOME SECURITY ACT (ERISA) COMPLIANCE

SUMMARY OF FIDUCIARY DUTIES AND PLAN REPORTING

Section 1: FIDUCIARY DUTIES & STANDARDS OF CONDUCT

Fiduciaries of ERISA-regulated retirement plans must act solely in the interest of plan participants and beneficiaries. They must exercise the care, skill, prudence, and diligence of a prudent person acting in a like capacity, and diversify plan investments to minimize risk.

Section 2: ANNUAL REPORTING & FORM 5500

Plan administrators must file Form 5500 annually with the Department of Labor (DOL) by the last day of the seventh month after the plan year ends. Late filings or failure to file can result in steep civil penalties and audit triggers.

Section 3: PARTICIPANT DISCLOSURES

Fiduciaries are required to provide plan participants with a Summary Plan Description (SPD) explaining plan rules, benefits, and rights within ninety (90) days of becoming a participant, and an updated SPD every five (5) years.